

Nitin Kumar Nishad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 July 2026 · WRIT - C No. - 28196 of 2026 · **Writ disposed of; petitioner directed to apply under clause 6.5.**

HEADNOTE

A consumer seeking a writ directing the supply company to raise a correct bill was informed of the clause 6.5 procedure under the Uttar Pradesh Electricity Supply Code, 2005, directed to apply, and granted leave to enclose a certified copy of the order with that application. The petition was disposed of without examining the bill on merits.

FACTUAL SUMMARY

The petitioner, Nitin Kumar Nishad, filed a writ petition in the Allahabad High Court seeking a direction upon the electricity supply company to raise a correct bill. Counsel for the petitioner pressed that prayer. The State appeared through Additional Chief Standing Counsel. Counsel appearing for respondent nos. 2 and 3, the supply company, submitted that the petitioner was required to apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — apply under clause 6.5

HOLDING

A writ seeking a direction to the supply company to raise a correct bill is disposed of without merits examination; the consumer must apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, and may enclose a certified copy of the order with that application. ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer seeking a writ directing the supply company to raise a correct bill was informed of the clause 6.5 procedure under the Uttar Pradesh Electricity Supply Code, 2005, directed to apply, and granted leave to enclose a certified copy of the order with that application.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL RAISED BY THE SUPPLY COMPANY WAS INCORRECT ON THE MERITS.